

Court No. - 29

Case :- WRIT - C No. - 39363 of 2024

Petitioner :- Shyam Sunder

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Aditya Singh, Jitendra Kumar Yadav

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Aditya Singh, learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondent no.1 and Sri Rajesh Mishra holding brief of Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 and 3.

2. Present petition has been filed for the following relief:-

"i. Issue a writ of mandamus directing the Respondent No.2 to decide the Petitioner's objection dated 08.11.2024 against the erroneous electricity bill within a stipulated time frame as may be deemed appropriate by this Hon'ble Court."

3. At the very outset learned counsel for the respondent nos.2 and 3 submits that the objections so filed by the petitioner can be suitably considered under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

4. Accordingly, the present petition stands **disposed of** with a direction to the respondent no.2, Executive Engineer, Electricity Distribution Division (EDD), Purvanchal Vidyut Vitran Nigam Ltd, Manjhanpur, Kaushambi, to consider and dispose of the objections of the petitioner as per law within the time frame as fixed in the Code.

5. It is made clear that this Court has not considered the claim of the petitioner on merit.

Order Date :- 27.11.2024

Shahroz